

moreover, assumed this attitude in an important decision;¹ and in another significant case the chief justice argued convincingly in the same direction, although the determination of this point was not essential to the decision of the court.² But the most recent writer on the subject has concluded, after a discriminating review of the whole matter, that the king did have the power to abrogate the old law by proclamation, and that the proclamation of 1763 did legally abrogate the French jurisprudence in favor of the laws of England.³ I am convinced that this conclusion is entirely sound. The question is, however, one of academic rather than of practical interest, for the terms of the proclamation, in their original form, were never put into general operation.

Apart altogether from the question of legality there were important practical difficulties in the way of the change. For one thing it was immediately found that the new English law of real property could not be applied by the courts to the settlement of disputes concerning proprietary rights, for the obvious reason that this law dealt mainly with the principles and incidents of socage tenure, whereas the land tenures of Canada were at this time almost wholly feudal, and it was the intention of the English authorities, in compliance with pledges given at the time of the conquest, to leave the land tenure system untouched.⁴ As the new law was so clearly unadapted to the subject matters with which it had to deal, the governor of the colony instructed the courts to apply the old law to disputes concerning land until the home government could be consulted on the point. In 1766 the English authorities gave instructions that in "all suits and actions relative to the titles of land, and the descent, alienation, settlement, and encumbrance of real property the colonial courts do govern themselves in their proceedings, judgments, and decisions by the local customs and usages which have hitherto governed and prevailed within the province."⁵ The common law of England here received, so far as the new possessions in America were concerned, its first important set-back.

¹ *Stuart v. Bowman*, 2 L. C. Rep. 369 (1851).

² The judgment of Sir Louis H. Lafontaine in *Wilcox v. Wilcox*, 8 L. C. Rep. 34 (1857).

³ F. P. Walton, *The Scope and Interpretation of the Civil Code of Lower Canada* (Montreal, 1907), pp. 12-19.

⁴ This whole question of the relation of feudal tenures to the new legal system is discussed at length in the writer's "Seigniorial System in Canada" (New York, 1907), Chap. XI.

⁵ Instructions to the Hon. James Murray (June 24, 1766) in Public Record Office, London, Board of Trade, Canada, vol. xv.